

Annexure-2 (Revised SI-4A)
60 Days' Notice to Guarantor/Mortgagor

Date: _____

(Name and address of the guarantor/mortgagor who has created security interest)

Dear Sir,

**NOTICE U/S 13(2) of the Securitisation and Reconstruction of Financial Assets and
Enforcement of Security Interest Act 2002**

Reg: Account No. _____ / credit facilities availed by M/s _____

M/s _____ (_____) have availed the following credit facilities:

Facility	Limit (Rs.)	Balance outstanding as on _____ (Rs.)
_____	_____	_____
Total		_____

Due to non payment of instalment/interest/principal debt the account/s has/have been classified as Non Performing Asset as per Reserve Bank of India guidelines. We have already demanded/recalled the entire outstanding together with interest and other charges due under the above facilities from the Borrower, vide letter dated _____, copy of which has already been sent to you. We have invoked the guarantee vide letter dated _____.

The amount due to the Bank as on _____ is Rs. _____ (_____) with further interest until payment in full (hereinafter referred to as "secured debt").

To secure the outstandings under the abovesaid facilities, you have, inter alia, created security interest in respect of the following properties/assets:

Facility	Security
_____	_____

We hereby call upon you to pay the amount of Rs. _____ (_____) with further interest at the contracted rate until payment in full within **60 days (sixty days)** from the date of this notice. In default, besides exercising other rights of the Bank available under Law, the Bank is intending to exercise any or all of the powers as provided under section 13(4) of the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act 2002 (hereinafter referred to as "the Act"). The details of the secured asset/s intended to be enforced by the Bank, in the event of non payment of secured debt by you are as under:

1. _____

Your attention is invited to provisions of sub-section (8) of section 13 of the Act, in respect of time available to you to redeem the secured assets.

Please take notice that in terms of section 13(13) of the said Act, you shall not, after receipt of this notice, transfer by way of sale, lease or otherwise (other than in the ordinary course of business) any of the secured assets above referred to, without prior written consent of the Bank. You are also put on notice that any contravention of this statutory injunction/restraint, as provided under the said Act, is an offence.

If for any reason, the secured assets are sold or leased out in the ordinary course of business, the sale proceeds or income realised shall be deposited/remitted with/to the Bank. You will have to render proper account of such realisation/income.

We reserve our rights to enforce other secured assets.

Please comply with this demand under this notice and avoid all unpleasantness. In case of non-compliance, further needful action will be resorted to, holding you liable for all costs and consequences.

This notice is issued without prejudice to the Bank taking legal action before DRT/Court, as the case may be.

Yours faithfully,

For [BANK NAME]

AUTHORISED OFFICER

Copy to: _____

Source: Annexure-2 (Revised SI-4A). Blank template; bank name and fields to be completed.